

Present:
Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.2829 of 2006.

Md. Montaj Sarkar

.....Petitioner

-Versus-

Most. Oaresa Khatoon and others

...opposite parties

Mr. Hassan Shaheed Kamruzzaman, Advocate

...For the petitioner

No one appears

...For the opposite parties

Heard & Judgment on:24.01.2024.

This Rule was issued calling upon the opposite party Nos.1-3 to show cause as to why the judgment and order dated 20.02.2006 passed by the learned Joint District Judge, 2nd Court, Pabna in Miscellaneous Appeal No.46 of 2004 reversing those dated 21.07.2004 passed by the learned Senior Assistant Judge, Chatmohor, Pabna in Miscellaneous Case No.09 of 1999 should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Facts in short are that the petitioner as petitioner filed above Miscellaneous Case under section 96 of the State Acquisition and Tenancy Act for pre-emption of the land of transferred by registered deed of Hiba bil iwaz dated 11.01.1999 which was executed by opposite party Nos.1-3 in favour of opposite party No.4. Above document was in fact a deed of sale but the same was falsely designated as a deed of Hiba bil iwaz. The petitioner did not get any notice of above transfer. On the same date opposite party Nos.1-3 sold their another land and used the sale proceed

to pay the consideration money of the impugned deed.

Opposite party Nos.1-3 contested the case by filing a joint written statement alleging that opposite party No.4 was in possession in the disputed land pursuant to a deed of partition dated 10.05.1983 and out of love and respect he executed and registered the impugned deed of Hiba bil iwaz to opposite party Nos.1-3

At trial petitioner and opposite party Nos.1-3 examined 02 (two) witnesses each. Documents produced and proved by the petitioner were marked as Exhibit No.1 series.

On Consideration of facts and circumstances of the case and materials on record the learned Senior Assistant Judge allowed the case and granted pre-emption of the disputed land to the petitioner.

Being aggrieved by above judgment and order of the learned Senior Assistant Judge opposite party Nos.1-3 preferred Miscellaneous Appeal No.46 of 2004 to the District Judge, Pabna which was heard by the learned Joint District Judge, Second Court, Pabna who on consideration of above materials on record and submissions of the learned Advocates for the respective parties allowed the appeal, set aside the judgment and order of the trial court and dismissed the miscellaneous case by impugned judgment and order dated 20.02.2006.

Being aggrieved by above judgment and order of the learned Joint District Judge, Second Court, Pabna petitioner as petitioner moved to this court and obtained this rule.

Mr. Hassan Shaheed Kamruzzaman learned Advocate for the petitioner submits that opposite party No.4 sold the disputed land to opposite party Nos1-3 by

the impugned deed of Heba bil ewaz but to defect the pre-emption right of the petitioner falsely designated above sale deed as a deed of Hiba bil iwaz. The learned Advocate further submits that on the date of execution and registration of the impugned deed opposite party No.4 sold out his another land and used above sale proceeds to pay the consideration of the impugned kobla deed.

The learned Senior Assistant Judge correctly appreciated above materials on record and lawfully allowed the pre-emption but the learned Joint District Judge most illegally set aside the judgment and order of the trial court and dismissed the Miscellaneous Case which is not tenable in law.

None appears for the opposite parties when the case was taken up for hearing although the case appeared in the list for hearing today.

I have considered the submissions of the learned Advocate for the petitioner and carefully examined all materials on record including the pleadings, evidence adduced by the parties and judgment and order passed by the learned Courts below.

It is not disputed that the disputed land belonged to respondent No.4 and he transferred above land to respondent Nos.1-3 by registered deed of Hiba bil iwaz dated 10.01.1999.

A certified copy of above deed was produced and proved by the petitioner at trial which was marked as Exhibit No.1. It has been alleged by the appellant that above deed of Hiba bil iwaz was in fact a deed of sale.

It was further claimed that respondent No.4 sold his another land to pay the consideration

money of the disputed land but no such document was produced and proved at trial.

Since the impugned deed (Exhibit No.1) appears to be a deed of Hiba bil iwaz the onus to prove that above document was in fact a deed of sale and executed and registered by respondent No.4 on receipt of monetary consideration lies with the appellant. But the appellant could not adduce any evidence oral and documentary to show that monetary consideration was paid by respondent Nos.1-3 to respondent No.4 as value of the disputed land.

Section 96 sub-section 10(c) of the State Acquisition and Tenancy Act excludes a Hiba bil iwaz from the purview of right of pre-emption provided the same was within any relation of consanguinity within 03 (three) degrees of the testator or donor. The appellant did not make out any case that the impugned deed of Hiba bil iwaz was not executed between the parties of relation of consanguinity within three degrees of the testator or donor.

In above view of the materials on record I hold that the learned Joint District Judge, Pabna correctly appreciated the evidence on record and rightly allowed the miscellaneous appeal holding that the appellant could not prove by legal evidence that the impugned deed was in fact a deed of sale not a deed of Hiba bil iwaz as it was designated.

As such I am unable to find any substance in this revision under section 115(1) of the Code of

Civil Procedure and the rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged.

Let the lower Court's record along with a copy of this judgment be transmitted down to the Court concerned at once.